

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, July 17, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-01720	Alexis Figueroa vs Foster Poultry Farms, et al.
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Readiness Conference

Appearance required.

24CV-04539	Lawler Excavation Pipeline and Utilities, Inc. vs Doug Boyer, et al.
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Merced DIP Lender's Demurrer to Doug Boyer's First Amended Third Party Complaint

As 24CV-04539, 24CV-06525, 24CV-6543, 25CV-02184, and 25CV-06356 have been consolidated for all purposes, Boyer's various first amended third party complaints may be taken together and treated as one pleading. Therefore, the court treats MDL's (Merced DIP Lender) demurrers to the first amended third party complaints in the various cases to be an omnibus demurrer.

The demurrer to Boyer's first amended third party complaint is OVERRULED IN PART and SUSTAINED IN PART WITH LEAVE TO AMEND.

The general demurrer to the second, third, and fourth causes of action based on Civil Code section 8500 barring the action is OVERRULED.

Section 8500's exclusivity provision governs rights with respect to any fund for payment of construction costs. The demurrer analysis turns on whether each cause of action is, in substance, a claim to the construction fund itself or a claim for personal liability arising from the lender's independent wrongful conduct.

Section 8500 does not bar Boyer's second cause of action. The fraudulent inducement cause of action is grounded in MDL's alleged independent wrongful conduct and not that of administering the construction loan fund. Boyer alleges MDL itself made oral and written representations to pay, that the representations were false and made without intent to perform, that Boyer relied on the representations, that due to the justifiable reliance Boyer was damaged, and that Boyer prays for judgment against MDL itself.

As to the third cause of action, the comparative indemnity and declaratory relief claim by Boyer against MDL seeks a declaration that MDL must bear a proportionate share of the Boyer's liability to the subcontractors. This is not, on its face, a claim to the construction fund. It is a claim for MDL's personal liability arising from MDL's alleged role in causing the subcontractor payment disputes. Any resulting judgment would be satisfied by MDL itself.

The fourth cause of action is similarly not barred by section 8500. By incorporating the prior allegations, and reading the complaint as a whole, Boyer has sufficiently alleged that MDL's enrichment flows not from the administration of the construction fund, but from MDL's alleged fraudulent inducement of Boyer's performance. As the second cause of action is not barred by section 8500, neither is the fourth cause of action.

The general demurrer to the second cause of action for failure to state facts sufficient to state a cause of action is SUSTAINED WITH LEAVE TO AMEND.

Although the first amended third party complaint is sufficient to withstand a challenge based on Civil Code section 8500, the second cause of action does not state facts sufficient to state a cause of action.

As Boyer has stated that the defect can be cured on amendment and has provided information that they can allege the who, what, when, where, and how that is missing, leave to amend is granted.

Boyer is to file an amended third party complaint within ten (10) days of this court's order.